

Khurseed Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 May 2023 · 2023:AHC:111842-DB · WRIT - C No. - 17190 of 2023 · **Disposed; assessments withdrawn; fresh order under Code**

HEADNOTE

Theft-assessment orders having been withdrawn by the electricity department, with seven days given to file evidence for a fresh order, the writ challenging the checking report and assessment notices does not survive. Any further proceeding must follow the procedure prescribed under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Khurseed Ahmad filed a writ challenging a checking report dated 12 May 2022, a provisional assessment notice dated 17 May 2022 and a final assessment notice dated 13 October 2022, all issued by the electricity department in a case of alleged theft of electricity. At the hearing, counsel for the department stated on instructions that the assessment orders had been withdrawn and that the petitioner had been given seven days to file an affidavit and documentary evidence for a fresh order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

fresh proceeding after withdrawal of theft assessment

HOLDING

Once the electricity department withdraws the impugned theft-assessment orders and gives the consumer time to file an affidavit and documents for a fresh order, nothing remains to be decided in the writ, and any further proceeding must be strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 2-4

FLAG No numbered clause is cited; the order refers only to the procedure prescribed under the U.P. Electricity Supply Code, 2005.

PRINCIPLE TAGS

fresh-proceeding-under-supply-code After the department withdrew the impugned theft-assessment orders, the Court disposed of the writ as not surviving and left any fresh order to be passed strictly under the procedure in the U.P. Electricity Supply Code, 2005. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE CHECKING REPORT AND OF ANY FRESH THEFT ASSESSMENT

The impugned assessment orders were withdrawn. The Court did not examine the theft allegation or the assessment on merits. ¶ 1-3